

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Probate Notes

2026PRCE062029: IN THE MATTER OF LOIS E WRIGHT
07/10/2026 in Department J6
Hearing on Petition for Appointment of Conservator of the Person and Estate

The court intends to appoint counsel for proposed conservatee.

Probate Code §1821(c) states:

(c) If the petitioner or proposed conservator is a professional fiduciary, as described in Section 2340, who is required to be licensed under the Professional Fiduciaries Act (Chapter 6 (commencing with Section 6500) of Division 3 of the Business and Professions Code), the petition shall include the following:

(1) The petitioner's or proposed conservator's proposed hourly fee schedule or another statement of their proposed compensation from the estate of the proposed conservatee for services performed as a conservator. The petitioner's or proposed conservator's provision of a proposed hourly fee schedule or another statement of their proposed compensation, as required by this paragraph, shall not preclude a court from later reducing the petitioner's or proposed conservator's fees or other compensation.

(2) Unless a petition for appointment of a temporary conservator that contains the statements required by this paragraph is filed together with a petition for appointment of a conservator, both of the following:

(A) A statement of the petitioner's or proposed conservator's license information.

(B) ***A statement explaining who engaged the petitioner or proposed conservator or how the petitioner or proposed conservator was engaged to file the petition for appointment of a conservator or to agree to accept the appointment as conservator and what prior relationship the petitioner or proposed conservator had with the proposed conservatee or the proposed conservatee's family or friends.***

Proposed conservator has not provided the information required by Probate Code §1821(c)(2)(B).

As to the requested Probate Code §2591 powers:

Probate Code §2590 states

(a) The court may, in its discretion, make an order granting the guardian or conservator any one or more or all of the powers specified in Section 2591 if the court determines that, under the circumstances of the particular guardianship or conservatorship, it would be to the advantage, benefit, and best interest of the estate to do so. Subject only to the requirements, conditions, or limitations as are specifically and expressly provided, either directly or by reference, in the order granting the power or powers, and if consistent with Section 2591, the guardian or conservator may exercise the granted power or powers without notice, hearing, or court authorization, instructions, approval, or confirmation in the same manner as the ward or conservatee could do if possessed of legal capacity.

(b) The guardian or conservator does not have a power specified in Section 2591 without authorization by a court under this article or other express provisions of this code.

Petitioner has not provided any grounds for the requested §2591 powers, especially as all assets are held in The Lois E. Wright Revocable Trust dated October 8, 2010 and to Petitioner's knowledge there are no assets subject to the estate of the proposed Conservatee.

This is insufficient. Petitioner has not shown that granting the requested powers “under the circumstances of the particular guardianship or conservatorship, it would be to the advantage, benefit, and best interest of the estate to do so.: (Probate Code §2590)

Further, petitioner has requested the power to “sell at public or private sale the personal residence of the conservatee as described in Section 2591.5 without confirmation of the court of the sale.”

Probate Code §2591(c)(2) states, in pertinent part, “The power granted pursuant to this paragraph is subject to the requirements of Sections 2352.5, 2540, 2541, and 2541.5.”

Petitioner has failed to file a Capacity Declaration.

The copy of the trust attached to the Confidential Supplemental Information (GC-312) is not complete. It stops at §7.02.

Discuss the filing of a capacity declaration.

As there do not appear to be exigent circumstances, the court intends to continue the hearing for the petitioner to file the information required by Probate Code §1821(c)(2)(B), and the Capacity Declaration.

The court intends to continue the hearing to 07/31/26 at 9:00 a.m. in Department J6.

The clerk shall give notice.